

of both, such receipt shall charge; and the true question in all these cases seems to have been, whether the money was under the control of both executors: if it was so considered by the person paying the money, then the joining in the receipt by the person who did not actually receive amounted to a direction to pay to his co-executor (for it could have no other meaning), and he became responsible for the money, just as if he had actually received it" (*d*). And in another case he said, "where two executors join in a receipt to a debtor, though the receipt of one would have been a discharge to the debtor, yet, they joining in the discharge, the debtor is taken to have paid to them both. His requiring the discharge of the executor who has not received the money amounts to saying, 'I make this payment to you both, and not to him only who actually receives the money'" (*e*).

8. **Churchill v. Hobson.**—In *Churchill v. Hobson* (*f*), Lord Harcourt took a distinction between creditors and legatees (*g*); that in the case of creditors who were entitled to the utmost benefit of the law, the joining of the executors in the receipt might make each liable for the whole; but when the legatees were concerned, who had no remedy for their *demand except in equity, it was altogether inequitable that one executor should answer for the receipt of the other. This doctrine was thus commented upon by Lord Northington. "At law," he said, "a joint receipt is conclusive evidence that the money came to them both, and is not to be contradicted; but a Court of equity, which rejects estoppels and pursues truth, will decree according to the justice and verity of the fact (*a*); and what is said by Lord Harcourt as to the distinction between a receipt of this kind as to a legatee and a creditor seems to have this meaning — that a *creditor* may at *law* charge both executors on a joint receipt, but that in a Court of *equity*, where alone *legacies* are received, such receipt shall not be

(*d*) *Joy v. Campbell*, 1 Sch. & Lef. 341.

(*f*) 1 P. W. 241.

(*e*) *Doyle v. Blake*, 2 Sch. & Lef. 242.

(*g*) See *Gibbs v. Herring*, Pr. Ch. 49.

(*a*) See *ante*, p. 201.